

As to the City's objections to the Petitioner's evidence, the Court sustains the City's objections insofar as petitioner offers the center divider to prove negligence, culpability, or a dangerous condition. The Court overrules the City's objections insofar as the allegation merely explains when petitioner suspected a claim. Yet, that limited use still does not show reasonable diligence on the Petitioner's part.

The petition is denied.

City of Beaumont is ordered to submit a proposed order consistent with this ruling by no later than August 5, 2026 and to provide notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501056	ARREDONDO VS JURUPA UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL BY LINDA ARREDONDO

Tentative Ruling:

The court has previously continued the hearing on this motion to September 4, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507322	JARA VS COMMUNITY CARE REHAB CENTER, LLC	MOTION TO COMPEL ARBITRATION BY COMMUNITY CARE REHAB CENTER, LLC

Tentative Ruling:

C.C.P., § 1281 provides: "A written agreement to submit to arbitration an existing controversy or a controversy thereafter existing is valid, enforceable, and irrevocable, save upon such grounds as exist for the revocation of any contract."

C.C.P., § 1281.2 provides that upon petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate and a party's refusal to submit to arbitration, the court shall order the parties to arbitrate the controversy if it determines an agreement exists, unless it determines that the right to arbitrate has been waived, that grounds exist for revocation, or that a party to the agreement is also party to a pending litigation arising out of the same facts and there exists a possibility of conflicting rulings on a common issue of fact or law. In such a situation, the court may (1) refuse to enforce the arbitration agreement and order intervention or joinder of all parties in a single action, (2) order intervention or joinder as to all or only certain issues, (3) order

arbitration among the parties who have agreed to arbitration and stay the action pending outcome of arbitration, or (4) stay arbitration pending outcome of the litigation. California Rules of Court, rule 3.1330 provides, “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.”

“ ‘[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.’ ” (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

II. FAA

The FAA (9 U.S.C. §§ 1-14) governs contractual arbitration in written contracts involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) “The ‘principal purpose’ of the FAA is to ‘ensur[e] that private arbitration agreements are enforced according to their terms.’ ” (*Lacayo v. Catalina Restaurant Group Inc.* (2019) 38 Cal.App.5th 244, 257 [citing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 344].) The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

The arbitration agreement here expressly states, “this Agreement relates to the Resident’s admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors, the parties agree that the underlying admission to the Facility involves interstate commerce.” (Kang Decl., Exh. A, Art. VI, § 7.1, p. 3.) It also states, “the parties agree that this Agreement is to be governed by the Federal Arbitration Act (9

U.S.C. §§1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration.” (Kang Decl., Exh. A, Art. VI, § 7.2, p. 3.) In opposition, Plaintiffs dispute this by arguing the language is boilerplate and conclusory and irrelevant until a valid agreement is established.

Both the FAA and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Pro., § 1281.2.) “In California, [g]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Theresa D. v. MBK Senior Living, LLC* (2021) 73 Cal.App.5th 18, 24.) Indeed, even where the FAA applies, “[i]n determining the rights of parties to enforce an arbitration agreement . . . courts apply state contract law. . . .” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Thus, we turn to whether an agreement exists.

III. Existence of Agreement

Under both federal and state statute, the threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Associates* (1996) 50 Cal.App.4th 676, 683.)

CCRC met its initial burden of a valid arbitration agreement with Lenore by submitting the declaration from Kailyn Kang, the Admissions Assistant at CCRC. She was familiar with the maintenance of records maintained in the ordinary course of business at the facility. During the admissions process, Leonore executed the arbitration agreement. (Kang Decl., at ¶¶ 6-8, Exh. A.)

The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) In opposition, Plaintiffs do not dispute the existence of the agreement. Instead, they argue CCRC did not establish Lenore knowingly and voluntarily assented to arbitration or that any individual signed the agreement. These assertions, while not explicit denials of signature, challenge formation based on Lenore’s asserted lack of capacity grounds and that Plaintiffs individually are not signatories.

A. Capacity

Lack of mental capacity to enter into the contract is a defense to enforcement of the arbitration clause. (Civ. Code, § 1556 [persons of unsound mind incapable of contracting].) Agreements made by a person of unsound mind may be void or voidable. (Civ. Code, §§ 38-40.) The Probate Code establishes evidentiary requirements relating to judicial determinations of capacity, including the capacity to contract. (Prob. Code, § 812.) A determination that a person is of unsound mind or lacks the capacity to contract must be supported by evidence of a deficiency in at least one of four specified mental functions, and evidence of a correlation between the deficit or deficits and the decision or acts in question: 1) alertness and attention (i.e., level of arousal or consciousness,

orientation to time, place, person and situation, ability to attend and concentrate); 2) information processing (i.e., short and long term memory, ability to understand or communicate with others, either verbally or otherwise, recognition of familiar objects and familiar persons, ability to understand and appreciate quantities, ability to reason using abstract concepts, ability to plan, organize and carry out actions, ability to reason logically); 3) thought processes (i.e., deficits include severely organized thinking, hallucinations, delusions, uncontrollable, repetitive or intrusive thoughts); and 4) ability to modulate mood and effect (i.e., deficits include persistent or pervasive state of euphoria, anger, anxiety, fear, panic, depression, hopelessness or despair, helplessness, apathy or indifference that is inappropriate in degree to the individual's circumstances). (Prob. Code, § 811(a)(1)-(4).)

The only evidence of Lenore's alleged incapacity to contract is the declaration from Plaintiffs' counsel, Steven C. Peck. He attaches medical records which he concludes "clearly demonstrate" incapacity and an inability to manage her affairs. However, in reviewing the medical records attached, as CCRC argues, they do not establish a cognitive deficit affecting Lenore's ability to understand the Agreement. Rather, it reveals a diagnosis of insomnia for which she was prescribed Ambien. (Peck Decl., Exh. 9.) This evidence is simply not compelling. Accordingly, the argument that Lenore was unable to enter into a valid contract is unavailing.

B. Parties to Agreement

Plaintiffs also argue arbitration cannot be compelled because CCRC improperly seeks to compel their wrongful death claim and they did not enter into the agreement. They are correct.

A cause of action for wrongful death generally belongs to qualifying heirs and persons specified in Code of Civil Procedure section 377.60, and not to the decedent. (*Wilson v. John Crane, Inc.* (2000) 81 Cal.App.4th 847, 860.) "As a general rule, plaintiffs cannot be compelled to arbitrate their disputes if they have not previously agreed to arbitration." (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 370.) An exception to this rule is for certain wrongful death claims based on medical malpractice. If a patient agrees to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (C.C.P., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if the heirs themselves never agreed to arbitration. (*Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 849-850.) However, as explained recently by the California Supreme Court in *Holland v. Silverscreen Healthcare, Inc.*, this exception does not apply to a wrongful death claim based upon neglect as defined by the Elder Abuse Act (Welf. & Inst. Code, § 15610.57, subd. (a)(1)). (*Holland, supra*, 18 Cal.5th at pp. 382-383.) "The critical question remains whether the complaint alleges negligent acts or omissions by 'health care providers in their capacity as providers' rather than 'against custodians and caregivers . . . that may or may not, incidentally, also be health care providers.'" (*Id.* at p. 382.)

Here, the wrongful death claim does not appear to be based on a claim for medical malpractice. (Comp., at ¶¶ 69-75; see *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.) Because Plaintiffs did not agree to arbitration for her wrongful death claim, they cannot be compelled to arbitration. (*Holland, supra*, 18 Cal. 5th at pp. 383-384.) Defendant concedes as much in reply. (Reply, 2:13-17.) **As a result, the motion to compel arbitration is denied as to the wrongful death cause of action. However, the first through third causes of action for (1) dependent adult abuse, (2) negligence and (3) violation of residents' rights are survival claims for injuries to Lenore.** These causes of action survive Lenore's death. (C.C.P., § 377.30.) These claims are encompassed within the arbitration agreement executed by Lenore and subject to arbitration. (Kang Decl., Exh. A, at §§ 2.1, 3.1.) **The motion to compel arbitration is granted as to the survival claims against CCRC.**

IV. Delegation

"[C]ourts presume that the parties intend courts, not arbitrators, to decide disputes about 'arbitrability,' ... such as 'whether the parties are bound by a given arbitration clause,' or 'whether an arbitration clause in a concededly binding contract applies to a particular type of controversy.'" (*BG Group, PLC v. Republic of Argentina* (2014) 572 U.S. 25, 34 [citation omitted].) However, "parties can agree to arbitrate 'gateway' questions of 'arbitrability,' such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy." (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69.)

"There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242.) The "clear and unmistakable" test reflects a "heightened standard of proof" that reverses the typical presumption in favor of the arbitration of disputes. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892.)

In *Aanderud*, the appellate court held that the language of the arbitration agreement's delegation clause, which stated that the parties "agree to arbitrate all disputes, claims and controversies arising out of or relating to ... (iv) the interpretation, validity, or enforceability of this Agreement, including the determination of the scope or applicability of this Section 5 [the "Arbitration of Disputes" section]...", was sufficient to "delegate[] to the arbitrator questions of arbitrability and is clear and unmistakable evidence that the parties intended to arbitrate arbitrability." (*Aanderud, supra*, 13 Cal.App.5th at 892.) Although the *Aanderud* plaintiffs argued that the delegation clause was "substantively unconscionable because they cannot afford to pay the arbitration costs associated with having the arbitrator decide enforceability," the court found that the agreement addressed the costs of arbitration and further noted that it incorporated the rules of JAMS, the selected arbitration forum, which had a policy on consumer arbitrations that limited the consumer's fees. (*Id.* at 895-896.) The defendant did not dispute that it was required to pay all fees and costs associated with the arbitration in light of this provision.

(*Id.* at 896.) Accordingly, the appellate court affirmed the trial court's order compelling arbitration, but "vacate[d] the portions in which the trial court made findings that are reserved for the arbitrator," including "that the arbitration provision was not procedurally or substantively unconscionable, all of the Aanderuds' claims were arbitrable, and the class claims should be dismissed." (*Id.* at 897.)

Here, the Agreement's delegation clause provides:

4.1 The arbitrator, and not any federal, state, or local court or agency, shall resolve all disputes, including without limitation, any disputes regarding the making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption or any other defense to the validity or enforceability of this Arbitration Agreement, as well as resolve the Parties' underlying disputes, as it is the Parties' intent to completely avoid the court system and resolve disputes without any judge or jury.

(Kang Decl., Exh. A, ¶ 4.1.)

Similar to *Aanderud*, the Agreement's delegation clause contains clear and unmistakable language the parties intended to cover all disputes related to the Arbitration Agreement and "completely avoid the court system and resolve disputes without any judge or jury." (*Id.*) Plaintiffs do not specifically challenge the validity of the delegation clause, but merely assert Lenore lacked capacity along with bullet points of why the agreement is unconscionable. Plaintiffs' lack of a specific challenge means that the Agreement's delegation clause remains valid.

Accordingly, the evidence shows the delegation clause is enforceable and reflects the original parties' intent to delegate all issues regarding the Agreement, including making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption or any other defense to the arbitrator.

The motion is granted in part, denied in part. Plaintiffs are ordered to arbitrate the first three causes of action against moving Defendant. The remainder of this action is stayed pending final resolution of the arbitration. (Code Civ. Pro., § 1281.4; 9 U.S.C. § 3.)

All proceedings are taken off calendar pending completion of arbitration, and this civil case is stayed pending arbitration. A hearing re: completion of arbitration is set for May 5, 2027, at 8:30 a.m. , in Department 5.

Moving party is ordered to give notice.